



**MINUTES
MEETING OF THE SUNRISE CITY COMMISSION**

**Tuesday, January 23, 2024
5:30 p.m.**

1. Call to Order

Mayor Ryan called the meeting to order at 5:31 p.m.

2. Roll Call

BY: City Clerk Felicia Bravo

Those found to be present were:

Mayor Michael Ryan
Deputy Mayor Joseph Scuotto
Assistant Deputy Mayor Neil Kerch
Commissioner Mark Douglas
Commissioner Jacqueline Guzman

City Manager Mark Lubelski
City Attorney Thomas Moss
Administrative Aide Lourdes Lawrence
City Clerk Felicia Bravo

ASL Interpreters: Melissa Kelly, Don Michelin, Donna Fernandez

3. Moment of Silence and Pledge of Allegiance

Mayor Ryan remembered Enid Guy, a local community activist.

4. Consent Agenda

MOTION A motion to approve Items 4A through 4D, with the exception of 4E, made by Deputy Mayor Scuotto was seconded by Commissioner Guzman.

Roll Call:

Commissioner Douglas	Yea
Commissioner Guzman	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

(A) Agreement
C24021 Resolution No. 24-9

A Resolution of the City of Sunrise, Florida, approving an "Interlocal Agreement between Broward County and City of Sunrise for Film Permitting;" and providing an effective date. City Manager Mark Lubelski.

(B) Agreement
C24013 Resolution No. 23-26-24-A

A Resolution of the City of Sunrise, Florida, approving a "First Amendment to Agreement to negotiate exclusively (270-day extension)" between the City of Sunrise and the Town of Davie regarding the Davie Utility System; and providing an effective date. City Manager Mark Lubelski.

(C) Equipment
C24009 Resolution No. 24-10

A Resolution of the City of Sunrise, Florida, approving the purchase of One (1) Gazoscan Methane Monitoring System and One (1) Inspectra Max Methane Analyzer from Ecotec Solutions, Inc. as the single source provider; and providing an effective date. City Manager Mark Lubelski. Daniel J. Ransone, Chief of Police.

(D) Agreement
C24022 Resolution No. 10-135-24-A

A Resolution of the City of Sunrise, Florida, approving a "Tenth Amendment to Professional Services Agreement" between the City of Sunrise and American Traffic Solutions, Inc. D/B/A Verra Mobility; and providing an effective date. City Manager Mark Lubelski. Daniel J. Ransone, Chief of Police.

(E) Donation
C24020 Resolution No. 24-11

A Resolution of the City of Sunrise, Florida, accepting a Donation from Chetu, Inc. to the City of Sunrise's Police Department for Community Policing Initiatives and Events; and providing an effective date. City Manager Mark Lubelski. Daniel J. Ransone, Chief of Police.

MOTION A motion to approve Item 4E made by Deputy Mayor Scuotto was seconded by Assistant Deputy Mayor Kerch.

Mayor Ryan opened the public hearing. No one came forward to speak.

Mayor Ryan closed the public hearing.

The representatives of Chetu, Inc. came forward to present the donation to the City.

Commissioner Douglas stated he was concerned about accepting donations. There was no structure in which this was done.

City Manager Mark Lubelski stated that the City Code has some guidelines, but the City Commission had wide discretion regarding donations.

Commissioner Douglas did not believe that the City should accept donations as it has in the past, like police dogs. He thought it would create problems in the future. The business was located in the corporate park. It was a prime piece of property. Chetu had previously discussed some changes to the use of their property. He asked what circumstances were considered when contemplating accepting donations.

City Manager Mark Lubelski explained that it had guidelines for sponsorships. The City did not accept donations from certain types of businesses, entities or candidates.

Commissioner Douglas did not want the public to believe that a business that gave a donation to the City was given special treatment. He had raised concerns about Janoura Realty letting the City employees have free parking. If the City needed to levy a Code violation against the plaza, he did not want it being passed over due to the donation. The situation could be a matter of optics regardless of the intent.

Mayor Ryan agreed with the concerns. It was the same type of concerns that the City had regarding the former Sunrise Foundation. Commissioner Douglas raised those same issues. There should not appear to be a quid pro quo. A future commission may misinterpret the action. Mayor Ryan did not think that developers should be asked to make changes to a site plan to benefit the community in order to have an application approved. It was a similar circumstance. The mischief that was possible was real and should be examined.

Deputy Mayor Scuotto thought there should be separate categories. This business wanted to donate money that was for a specific purpose. The Sunrise Foundation was created to accept donations in order for donations to be given to the Sec. 501(c)3 organizations that came before the City Commission to ask for funding. The law changed and it was not possible to continue the foundation. The franchise fees were outlawed by the State of Florida last year. The City needed parking for residents and employees for the new City Hall. Sunrise approached Janoura so the City could use their parking lot. Janoura used to be in the Community Development Department frequently. The City has partnered with All Saints Church for many years. The church was able to use the City's lots and the City was able to use its vacant lot for its special events. The City held a Fourth of July event and took money from Wheelabrator as a sponsor. Metropica has been in the City for years. They contributed to that event, as did the arena. Sawgrass Mills Mall sponsors events as well. There were ethics laws that needed to be followed. The County was in a discussion about a solid waste/recycling facility worth hundreds of millions of dollars. The arena would eventually be redeveloped. He thought that there should be a policy for donations that everyone followed. He agreed with Commissioner Douglas' concerns. He did not want people to believe that items were approved based on donations.

Mayor Ryan agreed that transparency was paramount. The discussion was important.

Assistant Deputy Mayor Kerch clarified that this was not reflective of Chetu, but part of a larger overarching discussion. He thought that there should be guidelines regarding amounts. He did not want the City to overthink a problem. The Charter Officers needed to look into the matter.

Commissioner Guzman thanked Commissioner Douglas for bring it forward and she agreed with the concerns.

Commissioner Douglas thought that sponsorships and donations were different matters. The Commission could seek guidance from staff, but could not dictate to the Commission. If the donator had an application before the City, it may be a concern. Many staff had discretion. He did not want them to exercise their discretion based on a thought or feeling that they had based on the donation. Commissioner Douglas added that they usually did not discuss matters such as this, but since the issue was raised, it needed to be addressed.

Mayor Ryan asked them to discuss the motivation.

The Chetu representative, Mrs. Atal Bansal, came forward to discuss the issue. She believed it was insulting. They gave a donation to the Fire Department last year expecting nothing in return. They felt as though they belonged in the City.

They have donated to Memorial Hospital Cancer Center. They wanted to share their good will and say thank you to the community.

Mayor Ryan thanked them. The City had toured the facility they have in the City. He did not want Chetu to believe this was about their donation.

Mrs. Bansal commented that people did not want to come to an office anymore. The property has been up for lease for two years and not yet been leased. They have carrying costs. They meant nothing by the donation and did not expect anything in return.

Roll Call:

Commissioner Douglas	Yea
Commissioner Guzman	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

5. Special Items

(A) Presentation

Presentation honoring the winners of "The Future of Chess" calendar art contest for students attending Sunrise schools and their teachers. Christine Pfeffer, Marketing & Communications Director.

(B) Proclamation

Proclamation proclaiming the Month of February 2024 as American Heart Month and February 2nd 2024 as National Wear Red Day in the City of Sunrise. Commissioner Jacqueline A. Guzman.

Mr. Austin Peremen, Simon Mall Assistant General Manager, came forward to accept the proclamation.

(C) Proclamation

Proclamation proclaiming the Month of January 2024 as Human Trafficking Awareness and Prevention Month in the City of Sunrise. Commissioner Jacqueline A. Guzman.

Ms. Nadine Cutno approached the City Commission to accept the proclamation.

(D) Presentation

Presentation of Donation from Chetu, Inc. to the City of Sunrise's Police Department for Community Policing Programs and Events. Daniel J. Ransone, Chief of Police.

6. City Items

(A) Appointment
C24019 Resolution No. 24-12

A Resolution of the City of Sunrise, Florida, appointing a member to the Veterans Advisory Board, and Removing a Non-Resident Member from the Board; and providing an effective date. City Manager Mark Lubelski. Felicia M. Bravo, City Clerk.

MOTION A motion to approve Item 6A made by Deputy Mayor Scuotto was seconded by Commissioner Guzman.

Mayor Ryan distributed the section of the City Code. Under the City Code, no more than five members could be non-residents. Mayor Ryan thought many of the members who were not residents were quite devoted.

Commissioner Douglas did not want to change the ordinance because there was a one-time issue. Non-residents on advisory boards were part of the Sunrise government.

Deputy Mayor Scuotto said most boards did not have non-residents. He did not want to expand the membership. There were circumstances that surrounded this member.

Mayor Ryan believed that the provision was there for a good reason, but thought it deserved a Commission discussion.

Deputy Mayor Scuotto spoke with a board member on Saturday and was questioned about the membership provisions.

Commissioner Douglas clarified that this section was a "shall" clause. The underlying principal was that the advisory board personnel were part of the government. He believed five non-residents was quite a few members.

Assistant Deputy Mayor Kerch believed that the City Code in this respect was fine. The member could still attend the meeting if there was a vacancy.

Mayor Ryan thought it was a good time to have a discussion regarding this matter. He asked if there was a nomination.

MOTION A motion to appoint Justin Wells to the Veterans Advisory Board made by Commissioner Guzman was seconded by Deputy Mayor Scuotto.

Roll Call:

Commissioner Douglas	Yea
Commissioner Guzman	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

7. Open Discussion

None

8. Commission/Mayor Reports

Deputy Mayor Scuotto thanked the residents for coming out to the City Hall Grand Opening. City staff did a fantastic job. He stated that City Clerk Felicia Bravo made the presentation on the 5th Floor regarding the City Commission, City Commission staff, City Clerk duties. The presentation was informative. He invited the public into the City Commission Office to see their space. He was glad they handed out coins and wood from the old city hall. The art plaza was coming along. The Veterans Park was coming along. He was amazed at how fast the building came down.

Assistant Deputy Mayor Kerch thanked staff for all of the hard work. The Affordable Housing Advisory Board meeting was attended. The Tunes and Trucks event was well attended. It was a Sunrise event. The residents had walked to the event. Other events should be held at Oscar Wind Park. The All Saints Carnival was coming up. He wanted to make sure it was successful.

Commissioner Guzman mentioned the Fashion Show to raise money for the American Heart Association. The Dr. Martin Luther King, Jr. event was wonderful. She attended the Hands on Broward meeting. The Community Action Agency handled applications for emergency funds. It was urgently needed. She thought the grand opening was fantastic.

Commissioner Douglas addressed a comment that he made about events and thought that he did not state it as he intended. He was referring to corporate entertainment events. He knows that Leisure Services did an amazing job. He attended three incredible events and Leisure Services was wonderful. Another event should be held at Oscar Wind Park. The residents were excited. The grand opening was incredible. He believed he was a legacy builder. He was proud to participate. He believed that the residents were proud of the City Hall. The residents have equity in the community. He received an email from the Panthers from Matt Caldwell honoring him for Black excellence. He was honored by the nomination.

Mayor Ryan agreed with the comments. City Hall was grand and the tours demonstrated what all of the offices were like. The insurance costs were extraordinary. People cannot live with the increases in insurance. It could begin to cause foreclosures. He feared this was on the horizon. He asked for the residents to share their stories.

9. City Manager’s Report

None

10. Consent Discussion

None

11. Quasi-Judicial Consent Agenda

None

12. Public Hearings

(A) Amendment
C24010 Ordinance No. 674-24-A

Commission discussion and/or action re: Second Reading of an Ordinance of the City of Sunrise, Florida, amending Chapter 2 “Administration” Article IV “Officers and Employees” Division 4 “Fire Chief” by amending Section 2-286 “Fire Chief Duties and Responsibilities” to require the Fire Chief to serve as an Ex Officio Voting Member of the Firefighters’ Retirement Plan Board; providing for conflict; providing for severability; providing for inclusion in the city code; and providing an effective date. City Manager Mark Lubelski. (First Reading CCM 1/9/2024 Passed 5-0).

MOTION A motion to approve Item 12A made by was seconded by. Deputy Mayor Scuotto Assistant Deputy Mayor Kerch.

Mayor Ryan opened a public hearing. No one came forward.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Douglas	Yea
Commissioner Guzman	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

(B) Amendment
C24012 Ordinance No. 697-24-A

Commission discussion and/or action re: Second Reading of an Ordinance of the City of Sunrise, Florida, amending Fiscal Year 2023/2024 Budget Ordinance No. 697; amending the General Fund (001) and the General Capital Improvements Fund (325); providing for conflict; providing for severability; and providing an effective date. City Manager Mark Lubelski. Susan Nabors, Director of Finance and Administrative Services. (First Reading CCM 1/9/2024, Passed 5-0).

MOTION A motion to approve Item 12B made by Deputy Mayor Scuotto was seconded by Assistant Deputy Mayor Kerch.

Mayor Ryan opened a public hearing. No one came forward.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Douglas	Yea
Commissioner Guzman	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

(C) Amendment
C23450

Commission discussion and/or action re: First Reading of an Ordinance of the City of Sunrise, Florida, Amending Chapter 11 "Retirement and Pensions" Article 2 "City of Sunrise Retirement Plans" Division 3 "Plan" by Amending Section 11-29 "Service Incurred Disability Retirement" to provide for rebuttable and conclusive in line of duty disability presumptions; providing for conflict; providing for severability; providing for inclusion in the code; and providing for an effective date. City Manager Mark Lubelski. Jami Ketchup, Director of Human Resources.

MOTION A motion to approve Item 12C made by Deputy Mayor Scuotto was seconded by Assistant Deputy Mayor Kerch.

Mayor Ryan opened a public hearing. No one came forward.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Douglas	Yea
Commissioner Guzman	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

13. Quasi-Judicial Hearing

None

14. City Clerk's Report

None

15. City Attorney's Report

None

16. Old Business

(A) Change Order
C24017 Resolution No. 17-15-24-A

A Resolution of the City of Sunrise, Florida, approving "Construction Contract Change Order Number 38" between the City of Sunrise and Stiles Construction for the New City Hall and Municipal Campus Improvements Project; and providing an effective date. City Manager Mark Lubelski. Timothy Welch, Director of Utilities.

MOTION A motion to approve Item 16A made by Deputy Mayor Scuotto was seconded by Assistant Deputy Mayor Kerch.

Mayor Ryan opened a public hearing. No one came forward.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Douglas	Yea
Commissioner Guzman	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

(B) Change Order
C24018 Resolution No. 17-15-24-B

A Resolution of the City of Sunrise, Florida, approving "Construction Contract Change Order Number 39" between the City of Sunrise and Stiles Construction

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for the New City Hall and Municipal Campus Improvements Project; and providing an effective date. City Manager Mark Lubelski. Timothy Welch, Director of Utilities.

MOTION A motion to approve Item 16B made by Deputy Mayor Scuotto was seconded by Assistant Deputy Mayor Kerch.

Mayor Ryan opened a public hearing. No one came forward.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Douglas	Yea
Commissioner Guzman	Yea
Assistant Deputy Mayor Kerch	Yea
Deputy Mayor Scuotto	Yea
Mayor Ryan	Yea

(C) Presentation

Commission Discussion and/or Action regarding Automated License Plate Reader (ALPR). Daniel J. Ransone, Chief of Police.

702 pm

Police Chief Daniel Ransone made a presentation regarding the use of license plate readers. The major uses were reactive, such as alerts, and analytic, such as investigative. Sunrise did not have this ability. As such, the City had to rely on other municipalities. Police Chief Daniel Ransone described cases in which they had success in using license plate readers. Without a license plate reader system, the City was hampered. The 13 red-light camera program could be expanded to include license plate readers, or the City could install 192 license plate readers. A school zone speed reader program could work as well. This would add 21 cameras. These cameras would be at no cost, but a fee that would be paid by the violator. He presented four options:

Option 1: Verra Mobility three-year contract with school zone cameras.

With this option the City would need to increase current staffing within the traffic unit from two full time PSAs to three. The amount of data between the red-light cameras and the School Zone Speed Cameras would cause the need. To staff this increase, a request would be made to convert two part-time PSA positions to one full-time PSA position.

Mayor Ryan stated that a neighboring City had 6,600 violations a day.

Police Chief Daniel Ransone provided information in October and the violation numbers were quite high, about 12,000 cars in violation over three days. The violations had to be reviewed by a certified police officer.

Mayor Ryan thought it would operate like a red-light camera. The violations would cause a planned obsolescence, because once the public was ticketed, there would be little recidivism.

Commissioner Douglas commented that the discussion began as license plate reader program and now was switched to a speeding enforcement program.

Commissioner Guzman supported the speeding enforcement program.

Option 2: 13 red-light cameras as license plate readers without school zone speed readers.

This option was the same as option # 1 with the exception of the school zone speed cameras. It consisted of signing a three-year contract with Verra Mobility and improving the current red-light cameras with new license plate reader technology.

Option 3: one-year contract with Verra Mobility with deploying 192 license plate readers at every entrance.

Commissioner Douglas asked if this was revenue generating and was advised it was not.

Police Chief Daniel Ransone asked for direction from the Commission. The cost was about \$6 million over 10 years.

Option 4: Verra Mobility one-year contract with the City paying for ALPR's at the current thirteen red light camera locations, plus 83 strategic locations throughout the City and major ingress and egress points – 96 total license plate reader locations.

Police Chief Daniel Ransone stated this was a scalable option. It would deploy 13 cameras and 83 cameras at main ingress/egress locations. Chief Ransone did not believe the City needed 192 cameras.

Mayor Ryan spoke about the school zones. At a reduced financial commitment, there could be the schools, and the main locations.

Police Chief Daniel Ransone thought that the 3-year contract with the red-light cameras with license plate readers, all of the school zones and some major locations for placement, it would be sufficient coverage.

Commissioner Douglas asked to focus on the license plate reader benefits. He asked if where it would be most beneficial to have license plate readers.

Police Chief Daniel Ransone responded on major roadways.

Commissioner Douglas commented that collocating the red-light cameras and license plate readers might save money, but may not be the best locations for license plate readers. Some of the school zones were not in ideal license plate reader locations. These may not be the most strategic locations. He did not prefer to go this way. Piggybacking license plate readers on the red-light cameras just because they were there was not a good reason. Commissioner Douglas asked if there have been recent studies regarding the effectiveness of red-light cameras.

Commissioner Guzman thought that it was important to invest in safety. She asked if there could be another survey.

Assistant Deputy Mayor Kerch asked about using Broward County's poles.

Police Chief Daniel Ransone answered that would be problematic. He would continue having discussions related to the mall.

Assistant Deputy Mayor Kerch was not sold on speed cameras. He would prefer strategic locations for license plate readers.

Mayor Ryan believed Option 2 was good. He supported school zone cameras. He thought the recidivism rate would be quite low. The discussions would have to take place. He believed most cities would install the cameras. The license plate readers would be strategic in these locations. The scalability was important. He thought the discussion was worthwhile. He wanted it to be deliberate and thoughtful.

Deputy Mayor Scuotto thanked Police Chief Daniel Ransone for the discussion. This would be the next level. He agreed it was surprising that the legislature had a bipartisan vote. He would support the 21 license plate readers in school zones. He thought if there were 60, it would be a good amount. He would support the 21 school zones only if there was education. Piggybacking onto poles or installing additional red-light poles may be a consideration. If the main entrances could have license plate readers, it would give them the coverage they need.

Commissioner Douglas did not want to be attacked by the community for installing more red-light camera and license plate readers. Some in the community did not support these programs. He thought the minimum means should be used to achieve the objectives. It would be an annual expense. He would look to find the \$600k annually to pay for the program from the existing budget. He did not want to expand the budget of the Police Department. He wanted to hold the line.

Deputy Mayor Scuotto said there were email messages regarding the red-light cameras. The residents were unhappy that the SRO program was cut in half. The amount of people speeding in school districts was outrageous. The

children were walking to Franklin Academy without a school zone. It would not be easy to start it up. If it was done, it should be done correctly.

Assistant Deputy Mayor Kerch asked if any cities in South Florida were using school zone cameras.

Police Chief Daniel Ransone did not know of any.

Assistant Deputy Mayor Kerch asked Police Chief Daniel Ransone if he wanted to be first to install them. He did not think Sunrise should be first.

Mayor Ryan believed that the number could be lowered by installing the speed zone cameras.

17. New Business

(A) City Sign Code

Commission Discussion and/or Action Regarding the City Sign Code. Assistant Deputy Mayor Neil C. Kerch.

MOTION A motion to discuss Item 17A made by Assistant Deputy Mayor Kerch was seconded by Deputy Mayor Scuotto.

Assistant Deputy Mayor Kerch stated he was not asking for a vote tonight. The restaurants were getting contacted by Code Compliance. There were numerous restaurants that used neon lights in their windows. The signs were not Code compliant. He was shocked that the sign code was 50 pages long.

Mayor Ryan agreed that it was an issue. City Manager Mark Lubelski has directed Code Compliance to hold off on this right now. The City Code needed to be adjusted.

Commissioner Guzman commented that in 2020 she wanted to reevaluate the Code regarding business advertisement. She wanted there to be action regarding signs. Businesses depended on signage.

Deputy Mayor Scuotto said the issue used to be billboards, then it was the pole signs. Twenty years ago, there were glass neon lights around all of the businesses. The window film was commonly used. Then it was banners and flags. As a business owner, sometimes it was tough. Businesses had to have signage just to get people attracted to the area. The City needed to make it look uniform and not a patchwork of lighting, flags and banners.

Commissioner Douglas asked City Manager Mark Lubelski if the City was working on an ordinance that had a carve-out for the east side.

City Manager Mark Lubelski asked if he meant the form-based code.

Commissioner Douglas asked if the form-based code would incorporate signage.

City Manager Mark Lubelski stated no.

Commissioner Douglas agreed with Deputy Mayor Scuotto. The sign code needed to be revisited, but it needed to be thoughtful. He was grateful there were no billboards or other types of election signs. Some cities had total chaos regarding signage. Sunrise did not have the problem.

Assistant Deputy Mayor Kerch did not want to gut the sign code. He did not want banners and billboards.

Commissioner Douglas said the flags proliferated during Covid-19. The vans that were actually signs were a problem, too. As times change, policies needed to adapt.

Mayor Ryan asked about a timetable for sign code changes.

City Manager Mark Lubelski replied there were two phases, the first which would come in February. The second would be more comprehensive, including community feedback related to coming into compliance.

18. Adjournment

Seeing no further business, the meeting adjourned at 8:35 p.m.

Respectfully submitted by:

Felicia M. Bravo, City Clerk